

# HOUSE . . . . . No. 4083

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## The Commonwealth of Massachusetts

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PRESENTED BY:

***David T. Vieira***

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*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the replacement of the Bourne Bridge.

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PETITION OF:

| NAME:                        | DISTRICT/ADDRESS:       | DATE ADDED:      |
|------------------------------|-------------------------|------------------|
| <i>David T. Vieira</i>       | <i>3rd Barnstable</i>   | <i>1/17/2025</i> |
| <i>Steven George Xiarhos</i> | <i>5th Barnstable</i>   | <i>6/4/2025</i>  |
| <i>Julian Cyr</i>            | <i>Cape and Islands</i> | <i>6/4/2025</i>  |

# HOUSE . . . . . No. 4083

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By Representative Vieira of Falmouth, a petition (accompanied by bill, House, No. 4083) of David T. Vieira relative to the replacement of the Bourne Bridge by a transfer of income surtax revenue. Revenue.

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to the replacement of the Bourne Bridge.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Chapter 29 of the General Laws is hereby amended by inserting after  
2   section 2JJJJJ the following section:-

3           Section 2KKKKKK. There shall be established and set up on the books of the  
4   commonwealth a separate fund known as the Bourne Bridge Replacement Fund, to be  
5   administered by the Massachusetts Department of Transportation. The fund shall be credited  
6   with: (i) appropriations or other money authorized or transferred by the general court and  
7   specifically designated to be credited to the fund; (ii) funds from public and private sources,  
8   including, but not limited to, gifts, grants and donations; (iii) any funds received from the federal  
9   government for the replacement of the Bourne bridge; and (iv) any interest earned on the assets  
10   of the fund. Amounts credited to the fund may be expended by the Massachusetts Department of  
11   Transportation, without further appropriation, for costs related to the replacement of the Bourne

12 bridge. Money remaining in the fund at the end of a fiscal year shall not revert to the General  
13 Fund. The fund shall not be subject to section 5C.

14           SECTION 2. Notwithstanding any general or special law to the contrary, \$200,000,000 of  
15 income surtax revenue, as defined in section 2BBBBBB of chapter 29 of the General Laws,  
16 collected in the fiscal year ending on June 30, 2025 but certified after July 20, 2025, shall be  
17 transferred from the Education and Transportation Fund established in said section 2BBBBBB of  
18 said chapter 29 to the Bourne Bridge Replacement Fund established in section 2KKKKKK of  
19 said chapter 29, not later than 30 days after the effective date of this act.